BY ORDER OF THE
SECRETARY OF THE AIR FORCE

DEPARTMENT OF THE AIR FORCE
POLICY DIRECTIVE 90-14

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Special Management

COMMITTEE MANAGEMENT PROGRAMS

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This Department of the Air Force Policy Directive implements Department of Defense Instruction 5105.04, *Department of Defense Federal Advisory Committee Management Program* and *Department of Defense Instruction* 5105.18, *Department of Defense Intergovernmental and Intragovernmental Committee Management Program*. This Directive establishes the Department of the Air Force policy for the establishment, renewal, management, and support of Department of the Air Force-sponsored Federal Advisory Committees and establishes the Air Force Federal Advisory Committee Management Program, as well as the Air Force Intergovernmental and Intragovernmental Committee Management Program. This publication applies to the United States Space Force, Regular Air Force, the Air Force Reserve, and the Air National Guard. Refer recommended changes and questions about this publication to the office of primary responsibility (**SAF.AA.AFDPO.workflow@us.af.mil**) using the DAF Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through the appropriate functional chain of command. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System.

SUMMARY OF CHANGES

This Policy Directive has been revised to change the Office of Primary Responsibility and to incorporate some administrative changes. This policy directive may not be supplemented.

1. Background. Title 5 United States Code, Appendix, *Federal Advisory Committee Act of 1972*, as amended, requires that each agency establish uniform guidelines for administering and managing their advisory committees. Guidelines are to be consistent with directives of the General Services Administration, Committee Management Secretariat and Title 41, Code of Federal Regulations, Part 102-3, *Federal Advisory Committee Management.* Federal Advisory Committee meetings must generally be open to the public unless the subject of the meeting, or a portion thereof, sufficiently justifies closure in accordance with subsection (c) of section 522b, Title 5, U.S.C. (*Government in the Sunshine Act*). Department of Defense Instruction (DoDI) 5105.04 implements the aforementioned statutes and regulations.

2. Objectives. Provide policy and assign responsibilities for the administration and management of Department of the Air Force (DAF) supported Federal Advisory Committees (FACs) and Intergovernmental and Intragovernmental Committees.

3. Policy.

3.1. The total number of Department of the Air Force-supported FACs and committees shall be kept to an absolute minimum. DAF supported FACs will only be established, renewed, or terminated with endorsement by the Secretary of the Air Force and approval of the Department of Defense Advisory Committee Management Officer (ACMO) in the Office of the Secretary of Defense.

3.2. Members of and consultants to DAF supported FACs must be endorsed by the Secretary of the Air Force and approved for appointment or reappointment by the Secretary of Defense on an annual basis, unless otherwise required by law.

3.3. A Designated Federal Officer (DFO) will be appointed to each DAF supported FACs. Alternate DFOs will be appointed as required to assist the primary DFO in overseeing compliance with all applicable federal laws, rules, and policies.

3.4. The Secretary of the Air Force or designee will review the advice and recommendations provided by Air Force-supported Intergovernmental and Intragovernmental Committees and determine which advice and recommendations shall be implemented by the Air Force.

4. Roles and Responsibilities.

4.1. The Administrative Assistant to the Secretary of the Air Force (SAF/AA) will:

4.1.1. Implement and manage Air Force Committee Management Programs.

4.1.1.1. Designate an Air Force Group Federal Officer (GFO) to assist in overseeing and managing DAF supported FACs. Once designated, the Group Federal Officer will be appointed by the Secretary of the Air Force.

4.1.1.2. Issue guidance for the administration and management of DAF supported FACs.

4.1.1.3. Review and recommend to the Committee Management Officer (CMO) all requests to establish, renew or terminate DAF supported FACs to ensure that the objectives and scope of activities of the advisory committee are and/or remain essential to the Air Force mission and that the objectives cannot be obtained within existing Air Force resources.

4.1.1.4. Review and recommend to the Secretary of Defense, as appropriate, all membership nomination requests for DAF supported FACs on an annual basis.

4.1.1.5. Serve as the decision authority to approve complete or partial closure of meetings to the public of DAF supported FACs. All requests for complete or partial closure will be coordinated with The General Counsel of the Air Force (SAF/GC).

4.1.1.6. Determine the level of support to be provided to DAF supported FACs.

4.1.1.7. Appoint DFOs and Alternate DFOs.

4.1.1.8. Have oversight of DAF supported FACs to ensure compliance with all FAC-related statutory and regulatory obligations and Department of Defense issuances.

4.1.2. Manage and administer the Air Force Intergovernmental and Intragovernmental Committee Management Programs consistent with DoDI 5105.18 and other Department of Defense guidance.

4.1.2.1. Review and recommend to the Secretary of the Air Force, as appropriate, the establishment of Air Force-supported Intergovernmental and Intragovernmental Committees.

4.1.2.2. Recommend termination, unless otherwise prescribed by statute or regulation, of Air Force-supported Intergovernmental and Intragovernmental Committees when their work has been accomplished, the committee's work or subject matter has become obsolete by the passing of time, their functions have been assumed by another Federal Government entity or the cost of operation of the committee exceeds the resulting benefit to the Air Force.

4.1.2.3. Serve as the Air Force Intergovernmental and Intragovernmental Committee Management Officer to provide policy oversight and management of the Air Force Intergovernmental and Intragovernmental Committee Management Program.

4.1.2.4. Provide, upon request, information to the Department of Defense ACMO on Air Force-supported Intergovernmental and Intragovernmental Committees.

4.1.2.5. When requested, submit an annual report to the Department of Defense ACMO on the Air Force-supported Intergovernmental and Intragovernmental Committees whose operation during the previous year exceeded 12 months total operation. At a minimum, this report shall include the committee's name, purpose, membership, recommendations made, and recommendations implemented.

4.1.2.6. Provide guidance to MAJCOM/FLDCOMs and subordinate organization on the establishment of local advisory committees formed to address family and retiree issues; morale, welfare and recreation programs; and other such installation-centric issues, comprised of DAF employees and their dependent family members. Such guidance will define local advisory committee exception to the procedural requirements of this instruction, by operation of Title 10 United States Code Section 1783, *Family members serving on advisory committees*.

4.2. The General Counsel of the Air Force (SAF/GC) will:

4.2.1. Provide counsel and legal guidance to SAF/AA, the designated Air Force GFO, and the DFOs, as appropriate, on issues relating to the Federal Advisory Committee Act, the

Government in the Sunshine Act, and 41 *Code of Federal Regulations Part 102-3* and other regulations, directives, and statutes that impact DAF supported FACs.

4.2.2. Provide guidance, in coordination with the DFOs, where appropriate, on issues pertaining to financial conflict-of-interest provisions of Department of Defense 5500.07-R, *The Joint Ethics Regulation* and related Office of Government Ethics regulations, including the appropriate handling of OGE 450, *Confidential Financial Disclosure Report*s, for members and consultants approved for appointment in accordance with DoDI 5105.04.

4.2.3. Review requests by DFOs of DAF supported FACs to close meetings completely or partially to the public to ensure the stated justification for closure clearly meets Government in the Sunshine Act criteria and Federal Advisory Committee Act (FACA) requirements.

FRANK KENDALL
Secretary of the Air Force

Attachment 1

GLOSSARY OF REFERENCES, SUPPORTING INFORMATION AND DEFINITIONS

References

5 U.S.C., Appendix, *Federal Advisory Committee Act*, as amended

41 CFR Part 102-3, *Federal Advisory Committee Management; Final Rule*

5 U.S.C. § 552b, *Open Meetings* (*Government in the Sunshine Act*)

DoDI 5105.04, *Department of Defense Federal Advisory Committee Management Program*, 6 August 2007

DoDI 5105.18, *Department of Defense Intergovernmental and Intragovernmental Committee Management Program*, 10 July 2009

DoD 5500.07-R, *The Joint Ethics Regulation*, 29 November 2007

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

10 USC § 1783, *Family members serving on advisory committees*

OGE 450, *Confidential Financial Disclosure Report*" to the list of Adopted Forms

Prescribed Forms

None.

Adopted Forms

Department of the Air Force Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

ACMO
CFR
CMO
DAF FACs
DFO
DoD
DoDI
FACA
FAC
FACs
FLDCOM
GFO
MAJCOM
OGE
USC

Office Symbols

SAF/AA

SAF/AAIPO
SAF/GC

Terms

Advisory Committee—Any committee, subcommittee, board, commission, council, conference, panel, task force, or other similar group, which is established by statute or reorganization plan, established or utilized by the President of the United States, or established or utilized by one or more agencies to obtain advice or recommendations for the President or one or more Federal agencies or employees. As defined, "Advisory Committee" does not include any committee that is composed solely of full-time or permanent part-time Federal employees, or any committee created by the National Academy of Sciences or the National Academy of Public Administration.

Designated Federal Officer—The full-time or permanent part-time Federal employee appointed by the DoD sponsor for a specific DoD-supported committee, who, as the Federal Government's representative to the committee, shall ensure the committee's compliance with all Air Force and DoD guidance on the management of Air Force Federal Advisory Committees.

Group Federal Officer—A full-time or permanent part-time Federal employee appointed by the DoD sponsor to assist the sponsor in overseeing and managing the sponsor's aspects of the Department of Defense Federal Advisory Committee Management Program.

Intergovernmental Committee—Any committee composed wholly of full-time or permanent part-time officers or employees of the Federal government and elected officers of State, local, and tribal governments (or their designated employees with authority to act on their behalf), acting in their official capacities. The sole purpose of such a committee shall be to exchange views, information, or advice relating to the management or implementation of Federal programs established pursuant to statute, that explicitly or inherently share intergovernmental responsibilities or administration.

Intragovernmental Committee—Any committee composed wholly of full-time or permanent part-time officers or employees of the Federal government.